

		complaint. In response to the latter, Plaintiff appears to have identified all the same people at the facilities that she identified in response to form interrogatory no. 12.1. Neither one of these responses is appropriate because they are not drafted to respond to any particular special interrogatory, i.e., they are not “straightforward.” With respect to the first category (“state all facts”), even assuming an answer to a particular interrogatory can be found buried in the response, Defendant is not required to dig through the response to find which statements apply and which do not. The second category suffers from the same defect. While Plaintiff may find it time consuming to “breakdown” the omnibus list in response to each interrogatory, she has not shown it would be unduly burdensome to do so. Again, though, Plaintiff is not required to provide information she does not have—she is only required to answer “as the information reasonably available” permits. In connection with this motion, Defendant shall recover its attorneys’ fees and costs in the amount of \$2,562.50, against Plaintiff and her counsel of record, Moran Law, jointly and severally. The sanctions are payable within 30 days. Plaintiff’s further, verified responses to Defendant’s first set of special interrogatories, nos. 1-6, 8-16, 18-33, 35-39, 42, and 44, are due within 15 days of the notice of ruling. Defendant is ordered to give notice of the ruling.
8	2022-1285266 Chavarria vs. Motale	Defendant Micha Motale’s motion for an order vacating the default entered against him in this action on 8/5/24 is granted. Defendant’s motion is timely and complies with the requirements for relief under Code Civ. Proc. §473(b). It also shows ground for relief for “mistake, inadvertence, surprise or excusable neglect” under section 473(b). Though plaintiff’s counsel had been on contact with Defendant’s counsel to discuss possible resolution, he did not alert Defendant’s counsel that he was going to take Defendant’s default. [Bobroff Decl., ¶ 6.] A plaintiff’s counsel is required to notify the defendant’s counsel, if known, prior to taking the defendant’s default. According to our local COA, this is not merely an ethical duty but a statutory duty. <i>Fasuyi v. Permatex, Inc.</i> (2008) 167 Cal.App.4th 681, 701–702 (reversing order denying relief from default); <i>Lasalle v. Vogel</i> (2019) 36 Cal.App.5th 127, 137 (reversing order denying relief from default).

		The obligation to advise opposing counsel of an impending default is part of an attorney's responsibility to the court and the legal profession and takes precedence over the obligation to represent the client effectively. (<i>LaSalle, supra</i>, 36 Cal.App.5th at pp. 134, 137, 248 Cal.Rptr.3d 263.) That duty, and counsel's responsibility to behave with professional courtesy, existed long before <i>LaSalle</i> was issued. (See <i>id.</i> at pp. 132-135, 248 Cal.Rptr.3d 263.) The <i>LaSalle</i> court not only reaffirmed counsel's ethical duty to warn opposing counsel of an impending default judgment but concluded that obligation is imposed by statute: "So to the extent it was possible for a party seeking a default with unseemly haste to commit an <i>ethical</i> breach without creating a legal issue, that distinction was erased by section 583.130. The ethical obligation to warn opposing counsel of an intent to take a default is now reinforced by a statutory policy that all parties 'cooperate in bringing the action to trial or other disposition.' [Citation.] Quiet speed and unreasonable deadlines do not qualify as 'cooperation' and cannot be accepted by the courts." (<i>Id.</i> at p. 137, 248 Cal.Rptr.3d 263.) Attorneys who do not comply with that obligation are "practicing in contravention of the policy of the state and menacing the future of the profession." (<i>Id.</i> at p. 141, 248 Cal.Rptr.3d 263.) <i>Shapell Socal Rental Properties, LLC v. Chico's FAS, Inc.</i> (2022) 84 Cal.App.5th 166, 213–214 (reversing order denying relief from default). Given Plaintiff's counsel's failure to notify Defendants' counsel that Defendant's default would be taken, and the resulting surprise to Defendant and his counsel, the court exercises its discretion to grant relief under Code Civ. Proc. § 473(b). <i>Shapell Socal Rental Properties, LLC v. Chico's FAS, Inc.</i>, 84 Cal.App.5th at 216-19. <i>See also Credit Managers Assn. v. National Independent Business Alliance</i> 162 Cal. App. 3d at 1173 (reversing denial of relief from default: "Plaintiff was not notified of the assignor's service of process or default being entered before the entry of the default judgment, and was thus taken by surprise."); <i>Baxter v. Prescott</i> (1958) 158 Cal. App. 2d 531, 533-34 (affirming order granting relief from default and finding that ongoing settlement negotiations and absence of warning re default constituted grounds for relief).
9	2024-1400995 Prince vs. GQG Partners LLC	Motion to Quash Motion to Dismiss Case Management Conference Specially Appearing Defendants GQG Partners LLC ("GQG") and Steve Ford ("Ford") (collectively, 'Defendants') seek an order quashing service